

## 306 Is Judicial Decision Making a form of Research?

→ Yes.

- There is identification of Problem/Question
- Both starts with a specific unresolved problem.
- The researcher asks a research question, the judges identifies the legal issues in dispute.
- Literature Review  $\equiv$  Precedent Analysis
- A researcher develops hypotheses.
- A judge forms a preliminary view of how the law applies.
- Applies to the facts.
- A researcher collects data through experiments, surveys, archives etc.
- A judge gathers data through evidence presented in court.
- Analysis of data  $\equiv$  Analysis of Evidence
- Reasoning & Argumentation.
- Reaching a Conclusion.

→ No.

They are distinct genre despite the parallels because of their core purposes audience & constraints.  
Research is primarily about Discovery & Adjudication is primarily about Resolution.

### 308 Hunch Theory of Judicial Decision Making

- Hunch → Intuitive Judgement (Flash of intuitive understanding)
  - A rapid, subconscious & holistic assessment based on the judge's life experience & sense of justice.

#### - Reasoning (Deliberative Justification)

- This is subsequent, conscious process of building a legally defensible argument to support the initial hunch.

#### → Reasoning is a slow, logical &

effortful process where the judge:

- searches for applicable statutes & precedents

- weighs the evidence presented (cherry-picking)

- crafts a logical narrative

- that connects law to the fact

- write an opinion that is

intended to be persuasive & withstand appeal. (a decision should be such that it should withstand appeal)

#### Dual Process Theory of cognition

- System 1 → The Hunch
- System 2 → The Reasoning

#### - The hunch is not a random guess.

It is an expert intuition, honed by years of legal practice & a deep understanding of the spirit of the law. (principles)

#### - The Judge must test their hunch against the law.

As they cannot find a legally sound way to support it, a judge should <sup>not</sup> abandon the hunch.

## Q10 Post-Verdict Environment - Influence on the way a judgement is drafted.

### 1. Internal Environment:

- "Did I get it right?"

→ Thorough reviews of the evidence & law.

→ strengthening the reasoning in rare case, changing/thinking the outcome itself.

→ Drafting process is where the judge constructs the logical, persuasive narrative that connects the facts to the law.

→ initial reliance on a particular precedent might be shaky.

The judge dive deeper into case law & find a nuanced legal principle to support the conclusion.

(alteration of legal context of the judgement)

### 2. Post-Verdict Environment: Peer & Appellate Scrutiny

→ The shadow of the Appeal.

→ The judge is drafting with a specific audience in mind: the appellate court.

A judge will proactively anticipate & address potential grounds for appeal within the judgement.

→ Collegial Influence

→ post-hearing conference

leads to a tentative verdict

The judge assigned to write the opinion must then draft a document that can

command a majority.

This requires negotiation,

compromise on wordings &

sometimes incorporating the perspectives or concerns of other judges.

### 3. The External Environment - Public & Media Influence

→ In High-Profile Case, a judge is acutely aware that the judgement will be widely read & dissected.

- a more comprehensive explanation
  - ↳ greater length judgements
- more assertive tone.
- ↳ emphasis placed on certain facts.

### 4. Practical Environment.

- ↳ Delay & Memory decay
- ↳ workload
- ↳ Burnt out - fatigue

### Conclusion

The written judgement is not a frozen transcript of a verdict reached in the courtroom. It is polished product that is deeply affected by its environment.

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Do Judges address all the issues or facts in dispute? - Judicial Silence.

Ans Judges do not necessarily answer all the issues or facts in dispute.

1. Principle of Judicial Economy (or Judicial Restraint)

↳ Court decide case on the narrowest possible grounds, addressing only the pressing issue necessary to resolve the dispute before them.

↳ Why?

↳ it conserves judicial resources.

↳ it ensures that legal

developments happens incrementally based on concrete facts.

↳ so court avoid hypothetical & moot cases.

1. Threshold Issue Concept

→ If one issue is decisive, the court has no need to address the others.

Example:

In a wrongful dismissal case, the employee sues for breach of contract & defamation. (हिस्रोमा भने २ फरक फरक मुद्दा दर्ता)

गजुने हुन्छ। कुनै अनवश्यकता हुँदैन कुनै एकमा निर्णय गराउनुको सहीको परिणामस्वरूप अर्कोमा आउनु पर्ने/नपर्ने हुन्छ)

Issue 1: Was the termination a breach of contract?

Issue 2: Did the employer make defamatory statements?

Judgement → Judge finds that the termination

was not a breach of contract. Having resolved the case on the threshold issue, the judge call termination & defamation claim

2. On Moot Issue:

If an event has already resolved the central dispute, the case is 'moot' & a court will often dismiss it without reaching merits.

Ex:

A student sues a ~~university~~ for a controversial student election campaign.

The election occurs before the case is decided. The court dismisses the case as moot because its ruling can no longer provide any practical relief.

3. On Issues Not Properly Raised by the Parties:

Court generally do not go looking for issues. Their role is to arbitrate the dispute the parties themselves bring forward.

Ex:

यदि चाहीने प्रतिवादीको कारको चुर्ता न. २ उत्तमान जाको दावी गर्दछ भने अज्ञातले स्वयंले चुर्ता नं. ३ पनि उत्तमान भएको भनी निर्णय दिन सक्दैन।

4. What Judge MUST address:

1. The core legal issues
2. Key disputed facts
3. Arguments of the losing Party.

● Absurdities seen in the marriage & divorce chapters?

→ Provisions that are contradictory, impractical & out of modern realities.

1. Automatic Marriage by Sex (Sect. 74)

→ Marriage needs consent. (fundamental element)

→ A woman could be legally married to man who raped her if a child's been, which is grave injustice.

→ Stigmatizes modern family structure where couple may consciously choose to be unmarried parents.

→ conflict with other laws where consent is a cornerstone of a valid marriage. (Sec. 67, 70(1)(a))

- Maternity is fact. Paternity is proof faith.  
No one ceases to verify the father through DNA check. (All faith don't need proof)  
Ram/Krishna are historical person - faith.

2. The 'Honeymoon period' for Paternity.

- A child born 180 days after marriage is the husband's.

→ A legal fiction that can lead to absurd results.

→ Ruled by calendar-based presumption.

3. Mandatory Reconciliation (Sect. 97 & 98)

→ Forcing reconciliation can be dangerous & re-traumatizing.

→ it imposes one-size-fits-all solution.

4. Divorce based on Desertion (Sec. 94(a) & 95(a))

→ Lived separately for 3 yr without consent.

→ "He st can lead to 'he said, she said' disputes about implied consent."

## 4. Gender Asymmetry:-

Sect. 34(b) &amp; 35(b):

A wife/husband who doesn't provide food or has turned her out of the house can divorce the other.

- similar grounds for both spouses. This makes them unequal. This increases the vulnerability for women.

Sect. 35(1)

- wife can divorce the husband on the ground of "rape". But ~~not~~ But reverse doesn't exist.

Sect. 34(c) & 35(c):

→ Physical & Mental Torture Criteria is vague & open to wide interpretation.

This can vary dramatically from one judge to another.

Sect. 73(2)

- "Willingness to Marry" Overrides All.

- If a woman is pregnant or has a child from a man, the marriage cannot be annulled without her consent, even if it was based on fraud or force.

→ This prioritizes the welfare of the child & mother.

→ This can entrap a man in a marriage founded on deception or coercion.

(केचालाई अनुयायि मरिगानेन विवाह गराइदिने सम्बन्ध।)

Sec 76.

- ଆର୍ଡିନାନ୍ସ ଆଫ୍ ମ୍ୟାରିଜ

- while marriage registration is mandatory the code explicitly states that non-registration does not invalidate a marriage.

- it creates a parallel system where unregistered customary marriage remain fully valid.

Why Codify a Moral Duty? - Are Human Values Eroding?

Ex: Sec 122: ବାବୁ ଆମାବାଇ ଆଫ୍ ମାତାମାନ ଓ

ବେଟାମାନଙ୍କୁ ସ୍ୱାମୀକାର କରିବା

↳ safety net.

1. Practical Necessity & Social Welfare.

→ state cannot solely bear the enormous financial & logistic burden of caring for an aging pop<sup>n</sup>.

The family is seen as the first line of support.

→ the law aims to reduce the state's welfare burden.

→ prevent elderly parent from being abandoned.

→ Upholding implicit inter-generational contract.

Phase I: Parents raise, educate & sacrifice for their children

Phase II - In their old age, children provide security & care for their parents.

- codifying this duty reinforces this social contract.
- Enforcing Reciprocity & minimize sufferings.
- the law as the teacher (The "expressive function" of law)
  - ⇒ law doesn't just punish. it also teaches & states societal values.

Are Human Values Breeding?

- Two compelling Views
  - Pessimistic View
  - Optimistic View
  - Realistic View
- Pessimistic View → The de-civilization. (Moral Declination)
  - ⇒ the speed of for a law is evidence of the failure of the underlying morality.

→ Realistic View:

- The law is not a sign of moral decay, but a necessary adaptation to radical social change.
  - ↳ Human values are not degreding (breeding), but they are transforming.
    - ↳ shift from Joint to Nuclear family
    - ↳ Urbanization & Migration.
    - ↳ Individualism Vs Collectivism.
- Law isn't replacing morality. It is vivifying response to new forms of social fragmentation.

## Q 226 Is the Empire of Law Increasing?

→ Yes.

Law is regulating area of life once governed by custom, religion or family. However, this is not inherently a sign of decivilization.

↳ it is a sign of more complex civilization

# residence.

## Q Art. Int Law scattered elsewhere.

1. Sec. 165 of Law Governing the Will

- A will made by a person outside Nepal shall be valid if it is made acc. to the law of the country where the will is made.

Principle: It adopts the principle of locus regit actum (the place governs the act),

2. Law Governing the Capacity to be a Guardian (Sec. 141)

Provision lists person who are disqualified from being a guardian, including a person convicted of a crime punishable by 3 or more years of imprisonment.

PIL - This applies Nepal's public policy standard on guardianship capacity, including restrictions on alienation of nationality of #

3

Marriage Registration of Nepalis Abroad (30(2))

→ In Nepalese Embassy or Consulate

PIL = lex patriae. (nationality of the parties)

- exception to territorial principle; allowing Nepali law govern a legal act performed physically outside Nepal.

4. Jurisdiction for Registered Marriage

involving a foreigner (Sec 77)

→ DC or Nepalese Embassy

PIL → subject-matter jurisdiction

5. Jurisdiction for Divorce by Mutual Consent (Sec. 93)

→ joint petition for divorce in the District Court.

PIL matter: - if one or both spouse reside abroad the question arises, which DC?  
→ last common residence, court of defendant's residence.

6. Recognition of foreign Adoption. (Chapter 849)

7. Recognition of foreign Corporate Entities (Sec 44)

8. Dealing with Missing Person Abroad (Sec. 40(9))

9. Sect 3 & 15.

→ Sec 8: Special law prevail

→ Sec 15: Customs & traditions contrary to law shall not be recognized.

### Conclusion:

Beside comprehensive chapter on Pvt. IL, the code has adopted a pragmatic "issue by-issue" approach embedding specific PIL solutions directly into the very chapters.

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Why did legislature placed such put-IL provision in concerned chapter rather under the comprehensive chapter of Pt-Int-law?

Ans This is brilliant/profound/nuanced question that gets to the heart of legislative strategy & legal philosophy.

→ This is a deliberate choice with several compelling rationales.

- User-Friendly
- Avoids Cross-Referencing
- Principle of Contextual Specificity
- Legislative Pragmatism
- Easier Amendment
- Reactive vs. Proactive Lawmaking
  - ↳ PIL rules are created reactively. When a new problem emerges, the legislature enact a specific act. (case by case basis)
- Default Rule vs. Special Rule (statute by statute manner)

20/08/28

शुक्रवार

विद्युत्ताराश्री

महाराष्ट्र, जालंधर

पंखरा ।

अभिज्ञान भाषिणीको बहुरंगीयता तथा शक्ति